

The Claremont City Council held a meeting on Wednesday, December 12, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

Mayor Charlene Lovett

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mr. O’Hearne asked to move Ordinance 567 – Amending the Non-Union Employee Salary Schedule to under Ordinance 564 - Renewable Energy. There were no objections.

Mr. Damren said to move Ordinance 565 Establish Board of Assessors to after Shugah Valley Snow Riders Annual Permission.

Mr. Damren said he holds the Council seat on the Claremont Community Television Board and it will expire at the end of December. He will ask Council to re-appoint him during Appointment to Boards and Committees.

REPORT OF THE SECRETARY

A motion was made by Mr. O’Hearne and seconded by Ms. Kier to accept the minutes of the November 13, 2018, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to accept the minutes of the November 26, 2018, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Ms. Kier and seconded by Ms. Lessard to accept the minutes of the November 29, 2018, City Council meeting.

Voice vote: motion carried 8-0.

MAYOR’S NOTES

Award

A Proclamation was presented to Keith Young for his actions which saved the life of a co-worker during a cardiac event.

Mr. Damren recognized the Greater Claremont Chamber of Commerce Presidential Honorees: Madeline Ferland, Model Youth of the Year; Matt Mooshian, Young Professional of the Year; Tom Liveston, Citizen of the Year; Claremont MakerSpace, Nonprofit of the Year; and New Hampshire Industries, Business of the Year.

Mr. Damren said Claremont MakerSpace held an open house last week and that it is a very vibrant place.

Mr. Damren talked about a Letter to the Editor, from Carl Bannon, owner of Sugar River Pharmacy, thanking the Police Department for its prompt action after a robbery. Mr. Damren commended the Police Department on behalf of the City.

Mr. Damren thanked the Fire Department for putting up lights in Broad Street Park.

Mr. McNutt thanked Public Works for participating in the Toys for Tots program, and for helping 1st & 2nd grade basketball teams buy uniforms. He thanked the Parks & Recreation Department for supporting the DCYF Giving Tree. Last night the Claremont Police Department held its annual Shop with a Cop at Walmart. He recognized the Fire Department for participating in escorting a young boy with a serious medical condition; a lot of departments participated. He recognized the Heart of Claremont for decorating the “bullpen.”

Mr. Damren thanked Mr. Koloski for his part in arranging the young boy’s escort.

Mr. Koloski said on Tuesday, December 18, 6 p.m., Time Out Americana Grill will host their annual community dinner for any person from any community that is in need of a meal.

Mr. McNutt thanked Erica Sweetser for her art work in downtown windows.

CITY MANAGER'S REPORT

Mr. McNutt said the building at 139 Main Street is a safety hazard. The shared wall is collapsing and there is no additional support on the abutting owner's building. If it collapses, it will take out three apartments in the abutting building. The Health Department has ordered those three apartments be vacated. The owner of that building is working with the renters to find other accommodations. Demolition of 139 Main has become a more complicated process and it will be more expensive. Barriers have been put in place to protect the public from falling debris. The City is seeking a CDBG (Community Development Block Grant) grant from CDFA (Community Development Finance Authority). An emergency meeting of the Council may need to be called in order to take money out of Fund Balance in order to abate this hazard. The engineer's report states this building could come down at any time. If the situation deteriorates further, he'll call an emergency meeting of the Council.

Mr. McNutt said that in the email he sent to Councilors, he referenced going with option 3, but he meant option 2 which is to shore up the shared wall.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Mr. Pope and seconded by Ms. Kier to appoint Robert L. Walker, II, to seat 1, of the Parks and Recreation Commission.

Voice vote: motion carried 8-0.

Claremont Community Television, Inc. (CCTV) Board of Directors

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to reappoint Allen Damren to seat 1 of the Claremont Community Television, Inc. (CCTV) Board of Directors.

Voice vote: motion carried 8-0.

CITIZEN'S FORUM

Sam Killay, Ward 3 (Winter Street), said he moved to Claremont in 2011. He feels the two religious symbols in Broad Street Park (on public land) are inappropriate and are a violation of separation of church and state. He said he is an atheist. He asked the Council to have the symbols removed. Mr. Damren said the Council would take this under advisement.

Joe Osgood, Ward 1, said he is still waiting for the Council to publicly state its position on whether or not the Council is the governing body. He has seen religious symbols in Broad Street Park all of his life and he is not in favor of removing them. He would be willing to have other symbols in the Park as well.

Bob Porter, Ward 3, said regarding the nativity in the Park with the holiday lighting, that the Supreme Court has ruled on this arising out of a case in Pawtucket, Rhode Island, where there was a similar situation, and the Court ruled that there was nothing unconstitutional about that. It appears that the Supreme Court, which is the law of the land, has said that it can be done as it is legal.

Walter Stapleton, Ward 3 resident and House Representative Ward 3, said regarding the religious symbols in Broad Street Park, that we have the right to practice religion including showing symbols. Individual towns and the state display celebratory symbols with many symbols. This is a long-standing tradition.

OLD BUSINESS

Resolution 2019-9 (as amended) Accept and Expend AmeriGas Funds, Lower Cul de Sac Place – Public Hearing

WHEREAS the City entered into an Agreement, dated March 27, 2015, with AmeriGas Propane, L.P. (“AmeriGas”) regarding the City’s acquisition of the former Synergy Gas Plant (the “Site”) located at Lower Cul-de-Sac Place (Map 120, Lot 10) upon completion of environmental clean-up of the Site, as well as portions of City-owned property located at 14 North Street (Map 108-1) and North Street (Map 107-31); and

WHEREAS, as part of this Agreement, upon completion of the clean-up and delivery of a deed transferring Map 120, Lot 10 to the City, AmeriGas agreed to pay to the City the sum of \$75,000.00 (seventy-five thousand dollars) to assist the City with expenses related to the Site; and

WHEREAS the Council, by motion dated April 15, 2015, authorized acceptance of Map 120, Lot 10 upon completion of remediation actions pursuant to a final Administrative Settlement Agreement and Order between AmeriGas and the United States Environmental Protection Agency (the “EPA”) and signature of the Agreement between AmeriGas and the City; and

WHEREAS the EPA has issued a Notice of Completion of the work at the Site;

NOW THEREFORE BE IT RESOLVED that pursuant to RSA 34:1-a there is established a Lower Cul-de-Sac Non-Capital Reserve Fund for the purpose of operations and maintenance expenses relating to property located at Lower Cul-de-Sac and identified in the City’s records as Map 120, Lot 10, or for any obligation related to the Property’s environmental condition as of the date of transfer of the property to the City, pursuant to the Settlement Agreement between AmeriGas Propane, L.P, and the City dated March 27, 2015; and

BE IT FURTHER RESOLVED that the City Council hereby accepts the amount of \$75,000.00 from AmeriGas upon its execution of a deed to Map 120, Lot 10 to the City, said funds to be deposited into the expendable reserve fund for the purposes outlined above; and

BE IT FURTHER RESOLVED that the City Manager or his designees will cause all additional monies received by grant, donation, or otherwise, related to the expenses for Map 120, Lot 10 to be deposited into said expendable reserve fund for the purposes outlined above; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(Majority Vote Required)*

Nancy Merrill, Planning and Development Director, said on October 10, Council tabled the resolution. On October 24, Council voted on an amended resolution, but forgot to remove it from the table. The Mayor asked for a legal opinion and it was recommended to remove the October 10 resolution from the table and then to vote to accept the amended resolution.

A motion was made by Ms. Kier and seconded by Mr. Pope to take off the table Resolution 2019-9 Accept and Expend AmeriGas Funds, Lower Cul de Sac Place.

Mr. O’Hearne said under Council Rules, legal counsel will give an opinion on law, but not on procedure, so he asked why legal counsel is telling Council to take it off the table. Mr. McNutt said legal counsel rendered an opinion because the Mayor asked for it.

Roll call vote: motion carried

Lessard - yes

O’Hearne - no

Stone - no

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 6-2

A motion was made by Ms. Kier and seconded by Mr. Zullo to adopt Resolution 2019-9 (as amended) Accept and Expend AmeriGas Funds, Lower Cul de Sac Place.

Ms. Kier read the resolution into the record.

Voice vote: motion carried 7-1, with Mr. Stone voting no.

NEW BUSINESS

Shugah Valley Snow Riders Annual Permission

Roger Wright, Ward 3 resident and President of the Shugah Valley Snow Riders, asked that the Snow Riders be allowed snowmobile access to City trails. They maintain about 70 miles of trails

in this and other communities. He said they appreciate what the City allows them to do. The Rail Trail is the only change. It has been moved from the Conservation Commission to the Parks and Recreation Department.

Mr. Pope asked if this permission could be extended for 2 or 3 years. Mr. Wright said the term is for one year, five years or indefinitely. Mr. Pope said he would like to review this in the future. Mr. Koloski said he brought it up last year and the concern about the 5 years is you wouldn't have the same Councilors in place.

Mr. Koloski asked if the Snow Riders were seeking permission to remove a portion of the fence as they had done in the past. Mr. Wright said he will speak with Parks and Recreation Director Mark Brislin regarding that.

James Neal, R&G Properties, 313 Washington Street, said that he is a family member of the ownership of that property as well as the registered agent. He understands the Rail Trail is for recreational use. His concern is that the section of the Rail Trail that passes in front of his property, and westerly is almost a "public highway." He said vehicles use it. He said he has spoken to the Police regarding vehicles using that section of the Rail Trail, but hasn't received a positive response from anyone. He thinks there is a safety issue with snowmobiles and baby carriages, bikes, etc. using that area. He said westerly of his property, vehicles are parked so they block the Rail Trail. He asked if it is a recreational trail or commercial property and should vehicular traffic be allowed on the Trail. He talked about the front of his property being used for a parking lot and would like to see his frontage respected. As far as snowmobilers, he thinks the safety issue should be addressed before approving snowmobile use.

Mr. Koloski asked if snowmobilers are covered by state insurance. Mr. Wright said yes, landowners (the City) are covered by a \$2 million liability policy.

Mr. Zullo asked if there have been vehicle issues on the Trail in the past. Mr. Wright said there are times when vehicles are on the Trail. Most of the time the sleds can navigate through the vehicles, but the groomers, which are 9' 6" wide, have to move out onto the road.

Mr. Koloski said he is comfortable approving this, but he would like the Parks and Recreation Commission to look at this for the best course of action.

Mr. Damren asked if Mr. McNutt had heard any complaints. Mr. McNutt said that he and Mr. Brislin have spoken about this. He agreed with Mr. Koloski's recommendation to take this to the Parks and Recreation Commission. He thinks it can be abated through discussion with the property owner.

Mr. Damren agreed with Mr. Koloski. He had no issue approving this permission.

A motion was made by Mr. Koloski and seconded by Mr. Zullo to authorize the city manager, or his designees, to take such actions as may be necessary to issue a written Snowmobile Trail Permission, pursuant to RSA 215-C:8, to Shugah Valley Snow Riders,

Inc. for a period of one year. This Permission is for use of designated City-owned land and class VI highways, which list is to be included with the Use Permission Form and is subject to all City and state rules and regulations pertaining to use of snowmobiles on public property. This Permission is granted subject to the following condition:

- 1. The City may close one or more trails on either City-owned land or class VI highways to snowmobile use as may be required for reasons including but not limited to trail conditions, maintenance and public safety.**

Voice vote: motion carried 8-0.

Mr. Damren asked Mr. McNutt to update the Council on this at the January meeting.

Mr. Koloski would like to be updated on removal and reinstallation of the fence.

Ordinance 565 Establish Board of Assessors – First Reading

The purpose of this proposed change is to establish a Board of Assessors appointed by the City Council. This Board would assume the function of evaluating and deciding upon property tax abatement requests. The City Assessor would continue to be responsible for and carry out the duties relative to taking the inventory and appraisal of property for taxation and the assessment of such taxes, and would sit as a nonvoting member on the Board of Assessors. The Board would also serve as an advisory board for the City Assessor and the City Council regarding the function of the assessing division. The reason for this amendment is to create a board specifically responsible for tax abatements, to ensure the public is engaged in the abatement/assessment process, and to incorporate a variety of perspective in the decision-making process.

This Ordinance can only take effect as proposed if and when Section 32 of the City Charter is amended to permit the City Council to appoint officials to carry out the tax abatement function. Section 32 currently provides that the City Manager shall appoint an “assessor or assessors,” encompassing both the statutory tax assessment and tax abatement functions under RSA 48:13. The Charter must be amended to change appointment authority for abatement functions from the City Manager to the City Council.

Enactment of this Ordinance will revise Chapter 2, Administration, Article III, Section 2-262 by removing the tax abatement function from the City Assessor’s duties. It will also revise Chapter 2, Administration, Article II, by adding a new Division 9 – Board of Assessors, to establish the Board and define its powers and duties, to include tax abatements. This change was requested by the City Council upon the recommendation of the Policy Committee.

A motion was made by Mr. Stone and seconded by Ms. Kier to move Ordinance 565 Establish Board of Assessors back to the Policy Committee for further review.

Mr. Damren said the City’s attorney brought up some items that would need to be changed in the City Charter in order to allow this to go forward, so he suggested that the ordinance not take

effect until such time that the City Charter was changed. So, there is some recognition that work needs to be done.

Motion carried 8-0.

Sullivan County Commissioners Update

Jeff Barrette, County Commissioner; Ben Nelson, County Commissioner; Derek Ferland, County Manager showed a PowerPoint presentation regarding County taxes and apportionment, strategic plan, regional economic profile project and upcoming initiatives.

Mr. Barrette said the amount to be raised in taxes over 10 years has been pretty flat due to financial performance. They have been reducing fund balance, but that is not sustainable. Sullivan County is developing a strategic plan with three main goals: invest in our people, be good stewards of our resources and exercise responsible regional leadership. Regional Economic Profile: Workforce Development Task Force, Economic Infrastructure Task Force and Quality of Life/Regional Identity Task Force including “LoveSullivan” campaign. Upcoming Initiatives: electrostatic precipitator install at biomass plant, nursing home renovation design, transitional housing study, VOCA/VINE grant for NH-wide project, broadband internet at Unity campus.

Ben Nelson, County Commissioner, talked about CDBG (Community Development Block Grant) and that the City can use the County allotment to help the City.

Mr. Barrette said the County hosted the NH City/County Conference. Mr. Nelson said the conference brought \$100,000 into the County and it brought in people from 10 counties.

Ordinance 567 – Amending the Non-Union Employee Salary Schedule – First Reading

The purpose of this proposed change is to amend Attachment C to the Non-Union Employee Classification Plan by amending and readopting the salary schedule for non-union City employees.

Enactment of this Ordinance will amend Attachment C of the Non-Union Employee Classification Plan. This change was requested by the City Administration.

A motion was made by Mr. Pope and seconded by Ms. Kier to adopt Ordinance 567 – Amending the Non-Union Employee Salary Schedule – First Reading.

Mr. Pope read the ordinance into the record.

Mr. Zullo asked how many Merit Plan employees are at the end of the pay runway. Mr. McNutt said approximately a dozen, or so.

Mr. O'Hearne said he doesn't believe this is what was asked for. He asked for an increase in the grade 11 salary. He had asked for a total year of what employees made. Council received the amounts that were paid hourly and weekly, but didn't get benefits, bonuses. etc. If this ordinance is approved, the City Manager has the discretion to raise Merit Plan pay. He thinks this should not go through tonight.

If this change is approved, Mr. McNutt said two positions would be below the minimum.

Mr. McNutt said a consultant was hired to do a previous wage schedule, but that it might not have been the best product.

Mr. McNutt said it didn't make sense to go through all the work to look at just 1 or 2 grades, so all Merit Plan grades were looked at. The highly qualified person who is still interested in the Chief Assessor position would probably come in at the higher end of this scale and if in a couple of years he were to request a salary increase, Mr. McNutt would not be in favor of that. This increase would give us the ability to hire that person. This is a highly qualified person and he fully supports the establishment of a Board of Assessors. Mr. McNutt has seen a lot of communities looking for assessors.

Mr. Pope said he is a member of a public union and he knows what it is like for negotiations to drag. He would have a hard time with this ordinance. He would like to see the negotiations finished.

Mr. Damren agreed with Mr. O'Hearne that this is not what he thought he would get. He expected the conversation to be narrowly focused around the paygrade for the Assessor. He talked about Claremont not being a training ground for other communities. It all comes with a cost.

Mr. McNutt said these are all Merit Plan employees. They are singular and not part of a union. He doesn't think it is accurate that the union members haven't received increases; they just took different forms (i.e. not taking a pay increase in order to maintain their health care). Merit Plan employees have not had wage increases in 4 years. This is not to guarantee Merit Plan employees will get a pay increase; this gives us flexibility, if warranted.

Mr. Koloski said he remembers hearing a comment that Council would get a larger look at pay and no one corrected it to look at just one grade.

Mr. O'Hearne said that Merit employees get paid more and pay less for healthcare. He said the union negotiations need to be finished before addressing Merit Plan employees. He said he doesn't believe this is ready for first reading.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - no
Zullo - no
Kier - no
Koloski - no
Pope - no
Motion failed 1-7.

Ordinance 564 - Renewable Energy – First Reading

The purpose of this proposed change is to adopt property tax exemptions for Solar, Wind-Powered and Woodheating Energy Systems in accordance with state law.

Enactment of this Ordinance will allow a property tax exemption for certain qualifying renewable energy systems up to the assessed value of the system. This ordinance has been requested by the Claremont Energy Advisory Committee. [Note: At the January 9, 2019, Mayor Lovett said that Ordinance 564 was requested by the Council and the Council forwarded it to the Energy Advisory Committee for its review.]

Nancy Merrill, Planning and Development Director, said when this was brought forward last time, it was applicable to primary residents only. This one is for anyone. If the referenced energy system services your property, you would be eligible for exemptions.

Ms. Merrill said Interim Assessor Joe Lessard had looked at this and he was satisfied with it.

There was a discussion about whether or not a large power generator could use this and Council agreed to send back to legal for clarification.

Community Development Block Grant (CDBG) Application-Turning Points Network – Public Hearings

1. The City proposes to submit an application for CDBG funding for up to \$500,000 to the NH Community Development Finance Authority. The funds will be subgranted to Turning Points Network for the acquisition, rehabilitation, relocation and expansion of Turning Points Network's services in Claremont. Turning Points Network serves primarily low and moderate income persons.
 - a. Review and Motion for Application for Grant – Public Hearing
2. Residential Anti-Displacement and Relocation Assistance Plan. Although this project does not involve any displacement or relocation of persons (or businesses), if the City were to undertake a CDBG project which involved displacement or relocation they would follow this plan.
 - a. Review and Motion to Adopt City's Residential Anti-Displacement and Relocation Assistance Plan – Public Hearing

Note: informational packets were available for review.

A motion was made by Mr. O’Hearne and seconded by Ms. Kier to approve the submission of a Community Development Block Grant application for the acquisition, rehabilitation, relocation and expansion of Turning Point’s services in Claremont to the New Hampshire Community Development Finance Authority in an amount not to exceed \$500,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and execute all documents related to the CDBG application.

Mr. Damren said Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available on a competitive basis for public facility and housing projects, up to \$500,000 for economic development projects and up to \$500,000 for emergency activities. All projects must directly benefit low and moderate income persons. Up to \$12,000 per study is available for Planning Grants.

This is a proposed application to the Community Development Finance Authority for up to \$500,000 in Community Development Block Grant funds for the acquisition, rehabilitation, relocation and expansion of Turning Point Network’s services in Claremont. Turning Point Network serves primarily low and moderate income persons.

This project conforms with Claremont’s Housing and Community Development Plan’s Goal of: Plan for complementary services such as affordable day care that allow families to participate in the work force. Encourage other services that will benefit low and moderate income persons, such as expansion of the dental clinic and soup kitchen among others. (Long & Short Term Goal)

Mr. Damren said both of these are open for a public hearing and Council will take comments from members of the public.

Ms. Merrill introduced Deb Mozden, Turning Points Network.

Ms. Mozden said Turning Points Network (TPN) works to end domestic violence and stalking. There is no fee for their services. They have a prevention program. They are asking for the grant because they have outgrown their space on School Street. 231 Broad Street was gifted to TPN. The space is not quite large enough, so they need the grant funding to add on to the building.

Mr. Damren asked if there were any comments from members of the public.

Liza Draper, Ward 3, said she was in support of TPN’s application. The work TPN does is essential for our community.

Joe Osgood, Ward 1, has worked with TPN for a number of years. He has known Ms. Mozden for 30-40 years and she does her homework. He was in favor of this.

Mr. Damren closed the public hearing.

Voice vote: motion carried 8-0.

Mr. Damren said although this project does not involve any displacement or relocation of persons (or businesses), if the City were to undertake a CDBG project which involved displacement or relocation, they would follow this plan. The plan outlines the measures they would take to find comparable, suitable housing for persons (or businesses) displaced or relocated.

A motion was made by Mr. O’Hearne and seconded by Mr. Koloski to move to review, reaffirm and readopt City’s Residential Anti-Displacement and Relocation Assistance Plan.

Mr. Damren opened the public hearing. No one spoke. He closed it.

Voice vote: motion carried 8-0.

Approve Extension in Depository Services

A motion was made by Mr. Stone and seconded by Mr. Zullo that the Claremont City Council, pursuant to Article III, Section 46 of the City Charter, hereby designates the Bank of New Hampshire (formerly Laconia Savings Bank) as the depository for City funds for an extended period of five (5) years and authorizes the City Manager or his designees to take such actions and execute all documents as may be necessary to implement this motion.

Lisa Richmond, Treasurer, said in 2012, the City paid \$15,000-\$20,000 a year in bank fees. The City is contracted with Bank of New Hampshire and currently doesn’t pay for supplies or fees. She is happy with their services. She would like to extend the agreement for five years. She said the City has been with the Bank of NH since 2012. It is very time consuming and labor intensive to change banks.

Voice vote: motion carried 8-0.

Resolution 2019-14 Expend \$111,150 FAA Grant – Demolish Terminal Building/Hangar; Construct New Terminal Building – Public Hearing

WHEREAS the City is undertaking a hangar reconstruction project at the Claremont Municipal Airport (the "Airport"); and

WHEREAS the City has applied for and been notified that it has been awarded a grant from the Federal Aviation Administration (the "FAA") in the amount of \$111,150.00 to fund the Demolition of the Terminal Building/Hangar (approx. 100’x60’); Construct New Terminal Building (approx. 1920 SF) – Phase I (design + bid) at the Airport, said amount including \$5,850.00 from the New Hampshire Department of Transportation and local matching funds from the City in the amount of \$5,850.00; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG-02-10-2018 Demolish Terminal Building/Hangar (approx. 100'x60'); Construct New Terminal Building (approx. 1,920 SF) – Phase I) in the amount of \$111,150.00, including monies from the New Hampshire Department of Transportation; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$5,850.00, as the City's share of the project, to be taken from the Airport Reserve Account (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to adopt Resolution 2019-14 Expend \$111,150 FAA Grant – Demolish Terminal Building/Hangar; Construct New Terminal Building.

Ms. Kier read the resolution into the record.

Fire Chief Bryan Burr said the grant was accepted in November and now this resolution is to be able to expend the funds. The project will start in January and may be done in July or August.

Mr. Damren opened the public hearing. No one spoke. He closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 8-0.

Ordinance 566 – Amending the Non-Union Employee Classification Plan – First Reading

The purpose of this proposed change is to amend and readopt Attachment B to the Non-Union Employee Classification Plan by adding the Legal Assistant and part-time Farmers' & Artisan Market Coordinator positions.

Enactment of this Ordinance will amend Attachment B of the Non-Union Employee Classification Plan. The cost of the new positions is included in the 2019 Fiscal Year Operating Budget. This change was requested by the City Administration.

A motion was made by Ms. Lessard and seconded by Mr. Zullo to adopt Ordinance 566 – Amending the Non-Union Employee Classification Plan.

Ms. Lessard read the ordinance into the record.

Mr. Damren said it is understood that the Farmers' & Artisan Market Coordinator position is only valid if it pays for itself. Mr. McNutt said this ordinance would make it a position, but the goal is to fund itself through the revenue brought in by the market. If it falls short, it would be looked at as to whether or not to retain the position.

Mr. Koloski said he hopes that it is grant funded or donations and not a paid position.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 8-0.

COMMITTEE REPORTS

Mr. Pope said the Energy Advisory Committee is looking at a short list of projects: updating zoning ordinances to be renewable-energy friendly, renewable energy generation on City property, etc. He said he can't say enough about City Staff and their help. On behalf of the Committee, he is reaching out to the schools to see how they can help.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Koloski noted that the code complaints on Mulberry Street are being dealt with.

Mr. O'Hearne asked that the Personnel Advisory Board have a representative present at Council meetings when recommendations for salaries will be discussed.

Mr. O'Hearne said in the future, when legal counsel is requested by the Mayor, he would like to be notified. He has a problem with legal counsel directing the Council. When the Council has to pay the legal bill, he would like to be informed.

Mr. Stone would like to make it a priority in January to clear up the issue of “governing body” and how it relates to the Charter. He would like a clear explanation of direction versus interference clause, also in January. Mr. Damren will speak with the Mayor.

Mr. Koloski said when Councilors reach out for information, they are told to include a copy to the Mayor, he asked that be reciprocated when the Mayor reaches out for a legal opinion.

Mr. Damren believes in the past that the Council has given Mayor Lovett the authority to speak to legal counsel on the Council’s behalf. This will have to be worked out.

Mr. McNutt said the Mayor had sent an email to Ms. Russell for distribution to the Council regarding the discrepancy with the resolution and it was forwarded to the Council.

It was the consensus of the Council to hold a Non-Public Session for Personnel on Thursday, December 20, 2018, 6 p.m.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:14 p.m., a motion was made by Mr. O’Hearne and seconded by Mr. Stone to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council